

Warsaw, October 18, 2024

Decision

DKN.5131.7.2024

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2024, item 572), Article 7 paragraphs 1 and 2, Article 9, Article 10, Article 60, and Article 102 paragraph 1 point 1 and paragraph 3 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781), as well as Article 57 paragraph 1 letters a) and h), Article 58 paragraph 2 letters d) and i), Article 83 paragraphs 1-3 and Article 83 paragraph 4 letter a) in connection with Article 37 paragraph 1 letter a) and paragraph 7 of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of May 4, 2016, p. 1, OJ EU L 127 of May 23, 2018, p. 2, and OJ EU L 74 of March 4, 2021, p. 35), hereinafter referred to as Regulation 2016/679, after conducting an ex officio administrative proceeding regarding the violation of personal data protection regulations by X, ul. (...), President of the Personal Data Protection Office finding a violation by X, ul. (...), of the provisions of Article 37 paragraph 1 letter a) and Article 37 paragraph 7 of Regulation 2016/679, consisting of the failure to appoint a data protection officer, and consequently the lack of publication of the contact details of the data protection officer and the lack of notification of these details to the supervisory authority,

- 1) imposes on X, ul. (...), an administrative fine of 25,000 PLN (in words: twenty-five thousand zlotys).
- 2) orders X, ul. (...), to bring its processing operations into compliance with the provisions of Regulation 2016/679 within 7 days from the date of delivery of this decision, by publishing the contact details of the data protection officer.

Justification

On February 13, 2024, the Personal Data Protection Office received information regarding "(...) the manner of compliance with the Personal Data Protection Act in Y at ul. (...) (...)". The content of the message conveyed by a natural person indicated, among other things, that the indicated "(...) Office does not have a Data Protection Officer (...)". The matter concerning the aforementioned irregularities was registered by the Office under reference number DKN.5101.57.2024. The President of the Personal Data Protection Office, hereinafter referred to as the President of UODO or the supervisory authority, based on the signal received regarding the possibility of a violation of personal data protection regulations, requested on February 15, 2024, pursuant to Article 58 paragraph 1 letters a) and e) of Regulation 2016/679, from X, hereinafter referred to as Z or the Administrator, to clarify whether the situation presented in the notification sent to the supervisory authority is indeed confirmed in reality, and in particular, whether a data protection officer has been appointed within the structure of the Administrator.

In response provided to the supervisory authority on February 21, 2024, the Administrator denied that any irregularities in the processing of personal data had ever occurred. Regarding the specific issue of appointing a data protection officer in his organization, Z raised the argument that "(...) the Data Protection Officer was Ms. AB, who has been on sick leave since (...)". The employment relationship with this employee ended on (...). All employee duties were taken over by Mr. CD, in accordance with the accepted and signed scope of duties."

In connection with the received response, the President of UODO, by letter dated February 29, 2024, requested the Administrator to inform whether, and in the case of a positive response, when and how he notified the supervisory authority about the appointment, change, or dismissal of the data protection officer. In a reply dated March 5, 2024, the Administrator indicated that "(...) [d]until now, the Data Protection Officer in Y was Ms. AB. At the time of her prolonged absence due to health issues, she transferred all duties to Mr. CD. (...)". He also admitted that "(...) Unfortunately, there was an oversight and this was not reported by correspondence to UODO. In the meantime, X faced staffing upheavals and problems arising from the change of headquarters and a prolonged move. As of today, an

effective notification of the new Data Protection Officer and deputy will be made.” Following this declaration, the Administrator sent to the President of UODO on March 5, 2024, the following notifications: 1) regarding the appointment of Ms. EF to the position of data protection officer (hereinafter referred to as IOD) in Y (...), 2) regarding the dismissal of Ms. AB from the position of IOD in the aforementioned entity, 3) regarding the appointment of Mr. GH to the position of deputy IOD in the aforementioned entity.

The transmission of the above information, indicating the possibility of a violation by the Administrator of the obligation arising from Article 37 paragraph 7 of Regulation 2016/679 during the period from the beginning of the application of Regulation 2016/679 in the Polish legal order, i.e., from May 25, 2018, to March 5, 2024, constituted – in the opinion of the President of UODO – a sufficient basis for initiating ex officio

****Administrative Proceedings****

The authority notified the Administrator by letter dated March 11, 2024, simultaneously registering this proceeding under reference number DKN.5131.7.2024. Regardless of the above, the President of the Personal Data Protection Office (UODO) obligated the Administrator to present evidence of appointing a Data Protection Officer (IOD) within its structure from May 25, 2018.

In response to the notification of the initiation of administrative proceedings in this matter dated March 18, 2024 (reference: (...)), the Administrator stated that “(...) [a]s the head of the unit and the Personal Data Administrator in Y in 2018, I authorized employee Ms. AB to take on the role of Data Protection Officer in Y. I was informed that all formalities related to this official act were completed. Ms. AB underwent the appropriate training in this regard and, as the in-house HR officer, prepared documents related to the employment of employees, where she included her data as the Data Protection Officer. In light of the above, I believe that the necessary formalities were completed at the Personal Data Protection Office.” A photocopy of the personal files of the aforementioned person was attached to the above statement, consisting of: a certificate issued on June 2, 2018, by an external entity “Certificate (...)”, an information clause on the processing of personal data, and an authorization granted by the Administrator on May 25, 2018, “Authorization (...)”. The Administrator also disclosed the content of order no. (...) dated May 25, 2018, “(...)”.

In connection with the explanations provided so far in this matter, the President of UODO, by letter dated March 29, 2024, requested the Administrator to provide evidence, e.g., in the form of an employment contract, the content of internal regulations, or an indication of the scope of employee duties, substantiating the circumstance mentioned in the letter dated March 18, 2024 (received by the Personal Data Protection Office on March 21, 2024, reference: (...)), regarding the Administrator's authorization of Ms. AB “(...) to take on the role of Data Protection Officer in Y.”, as well as indicating the formal appointment by the Administrator of Ms. CD to perform the function of IOD, to whom - according to the letter dated March 5, 2024 (reference: (...)) - Ms. AB “(...) transferred all duties (...)”.

In response dated April 4, 2024, the Administrator provided a copy of the employee records concerning Ms. AB, where, in addition to the documents mentioned above, there were also employment contracts concluded between the Administrator and Ms. AB on April 1, 1999, and September 2, 2019, as well as a document defining basic employee duties issued by the Administrator on March 2, 1999, regarding the aforementioned person “Assignment (...)”. A similar document dated June 26, 2023, marked as “Scope (...)” was addressed by the Administrator to Ms. CD, who expressed her approval of the provisions contained therein with her handwritten signature dated July 3, 2023. An analysis of the employee documentation presented by the Administrator concerning Ms. AB and Ms. CD showed that it did not include the appointment of the mentioned individuals to perform the function of IOD.

Considering the content of the explanations submitted by the Administrator during this proceeding, the President of UODO deemed it necessary to expand the investigation regarding the possibility of a violation by the Administrator of the obligations arising from Article 37(1)(a) of Regulation 2016/679, of which the party was notified by the supervisory authority based on a letter dated April 12, 2024, in

accordance with Article 61 § 1 and 4 of the Code of Administrative Procedure (Kpa).

At the same time, by letter dated August 28, 2024, the supervisory authority requested Z to provide evidence, e.g., in the form of an employment contract, the content of internal regulations, or the presentation of the scope of employee duties, indicating the formal appointment of Ms. EF to perform the function of IOD, in accordance with the notification submitted by her on March 5, 2024.

Furthermore, the President of UODO called for an explanation of the reasons for the Administrator's failure to provide evidence regarding the appointment of IOD (and thus also Ms. EF) within its structure from the beginning of the application of Regulation 2016/679 in Polish law, i.e., from May 25, 2018, which the supervisory authority requested from the Administrator on March 11, 2024.

In the response dated September 5, 2024, the Administrator presented the content of "Order (...)" regarding, among other things, the appointment of Ms. EF "(...) to perform the function of Data Protection Officer (IOD) in Y." Regardless of the above, Z informed that during the proceedings, it presented "(...) all documents (...) concerning the appointment of Ms. AB to the position of IOD since 2018 (attachments to letters dated March 18, 2024, and April 4, 2024)." However, the Administrator did not indicate – contrary to the request of the President of UODO dated August 28, 2024 – the reasons for the failure to provide evidence regarding the appointment of IOD (and thus also Ms. EF) within its structure from the beginning of the application of Regulation 2016/679 in Polish law, which the supervisory authority requested from him on March 11, 2024.

In this factual state, after reviewing all the evidence collected in this case, the President of the Personal Data Protection Office considered the following.

According to Article 34 of the Act of May 10, 2018, on the protection of personal data (hereinafter: uodo), the President of UODO is the competent authority in matters of data protection and the supervisory authority within the meaning of Regulation 2016/679. Pursuant to Article 57(1)(a) and (h) of Regulation 2016/679, without prejudice to other tasks specified under this regulation, regulations, each supervisory authority in its territory monitors and enforces the application of this regulation; it conducts proceedings regarding violations of this regulation, including based on information received from another supervisory authority or another public body. According to Article 4 point 7 of Regulation 2016/679, the controller is a natural or legal person, a public authority, a unit, or another entity that determines the purposes and means of processing personal data, either alone or jointly with others; if the purposes and means of such processing are specified by Union law or the law of a Member State, then a controller may also be designated in Union law or the law of a Member State, or specific criteria for its designation may be established.

Pursuant to Article 37(1)(a) of Regulation 2016/679, the controller and the processor shall designate a data protection officer whenever processing is carried out by a public authority or body, except for courts acting in their judicial capacity. Furthermore, under Article 37(7) of Regulation 2016/679, the controller or processor shall publish the contact details of the data protection officer and notify the supervisory authority of these details.

In light of the above, it should be noted that the EU legislator has introduced an absolute obligation for all public authorities and entities to designate a DPO, without, however, specifying the concept of a public authority or entity that would be the addressees of the norm of the mentioned legal provision. Therefore, in accordance with the recommendation of the Article 29 Working Party contained in Guidelines WP 243 regarding data protection officers (hereinafter referred to as Guidelines WP 243), to ensure that the proper definition of the aforementioned concept is reflected in national law, the Polish legislator, in the regulation of Article 9 of the Personal Data Protection Act (uodo), included a closed catalog of public authorities and entities obliged to designate a DPO, as referred to in Article 37(1)(a) of Regulation 2016/679.

Thus, by public authorities and entities obliged to designate a DPO under the mentioned provision of the uodo, it is understood: units of the public finance sector, research institutes, and the National Bank of Poland.

In attempting to identify public entities covered by the scope of application of Article 37(1)(a) of Regulation 2016/679, one must refer to the interpretative guidance provided in Article 9 points 1-14 of the Act of August 27, 2009 on Public Finances (Journal of Laws of 2023, item 1270; hereinafter referred to as the u.f.p.), according to which the public finance sector includes: public authorities, including government administration bodies, state control and law enforcement authorities, as well as courts and tribunals, local government units and their associations, metropolitan associations, budgetary units, local government budgetary establishments, executive agencies, budget economy institutions, state special purpose funds, the Social Insurance Institution and the funds managed by it, as well as the Agricultural Social Insurance Fund and the funds managed by the President of the Agricultural Social Insurance Fund, the National Health Fund, independent public healthcare establishments, public universities, the Polish Academy of Sciences and the organizational units created by it, state and local government cultural institutions, and other state or local government legal persons established under separate laws for the purpose of performing public tasks, excluding enterprises, research institutes, banks, and commercial law companies.

Based on the previous findings, it should therefore be concluded that X, being a public administration authority, exercising its competencies (...) within the framework of the combined district administration, is an entity falling within the scope of the obligation under Article 37(1)(a) of Regulation 2016/679. To strengthen the presented argument, it is worth adding at this point that according to (...), being responsible for the internal organization and specific scope of tasks of the mentioned budgetary unit, thus in relation to which an obligation to have a DPO in its structure can also be derived. Transferring the above considerations to the field of personal data protection regulations, it should be concluded that in such outlined circumstances, the public administration authority at the head of a unit financed from the state budget, which determines the purposes and means of processing personal data within its structure, will be obliged to exercise due diligence in designating a DPO.

Meanwhile, relating the above findings to the established factual state in the course of these proceedings, it should be pointed out that in particular, the documentation presented by X does not show that "(...) [a]s the head of the unit and Data Controller in Y in 2018 (...)" he authorized "(...) employee Ms. AB to take on the role of Data Protection Officer in Y." In the opinion of the President of the UODO, the evidence that the Controller should have used to demonstrate the proper designation of a DPO in its structure should particularly include: internal regulations, resolutions, delegation of duties, or an employment contract concluded with the person designated to perform the DPO function, which the Controller did not do. In an attempt to demonstrate to the supervisory authority the proper fulfillment of the obligation imposed on him, as referred to in Article 37(1)(a) of Regulation 2016/679, in a letter dated March 18, 2024, he revealed the content of documentation which, in his opinion, constitutes evidence of his "(...) necessary formalities at the Office for Personal Data Protection." Unfortunately, for the aforementioned reasons, both the attached copy of the personnel files concerning Ms. AB in the form of: a certificate issued on June 2, 2018, by an external entity "Certificate (...)", the information clause...

the processing of personal data and the authorization granted by the Administrator on May 25, 2018, "Authorization (...)", as well as the order no. (...) from May 25, 2018, "(...)", cannot be attributed evidentiary power in the form desired by the Administrator. The evidence presented by him does not contain any formal legal records that would relate to the issues being investigated by the President of the UODO. The information clause on the processing of personal data by the Administrator concerning Ms. AB, as well as the aforementioned order no. (...), due to the formulations appearing in them that may indirectly indicate that the function of the Data Protection Officer (DPO) in the structure of the Administrator is held by the aforementioned person, cannot, however, constitute that a formal, in other words effective, appointment of Ms. AB to perform this function has indeed occurred. In the opinion of the President of the UODO, these two mentioned internal acts should be viewed in the disclosed factual state at most as a certain interpretative guideline regarding the positioning of Ms. AB in the organizational structure of the Administrator and for this reason, they cannot be assessed in any case through the prism of the effectiveness of the appointment of this person to perform the function of DPO. In order to demonstrate the effectiveness of such an appointment before the supervisory

authority, the Administrator should strive for the legal act or contract with the person who is to perform the function of DPO to not only be in written form but also clearly indicate the appointment of a specific person to perform the function of DPO, along with a precise assignment of their scope of duties in accordance with the provisions of Articles 38 and 39 of Regulation 2016/679. The establishment of an internal security policy for the processes of personal data processing, or the fulfillment by the administrator of the information obligation referred to in Article 13 of Regulation 2016/679, concerning the DPO employed in his organization, constitutes a logical consequence in the normal course of actions of the formal appointment of a given person to perform the function of DPO, and will not, by their nature, possess the mentioned function.

For the reasons specified above, the employment contract concluded between the Administrator and Ms. AB on September 2, 2019, cannot be considered as such a contract – in the opinion of the President of the UODO – because its content does not refer in the slightest degree to the possibility of this person performing the function of DPO in the Administrator's organization (not to mention the employment contract concluded between the aforementioned parties on April 1, 1999, thus long before the entry into force of Regulation 2016/679 in the Polish legal system). Similar remarks, for obvious reasons, should also be made regarding the issue defining the basic employment duties of Ms. AB, "Assignment (...)" issued by the Administrator concerning the aforementioned person on March 2, 1999. Importantly, the outlined state of legal violation, resulting from the inability of the Administrator to demonstrate the effective appointment of Ms. AB to perform the function of DPO, has never been validated. The circumstance cited by the Administrator, indicating that "(...) AB (...) as the in-house HR officer prepared documents related to the employment of employees, where she included her data as the Data Protection Officer (...)" cannot, in light of the provisions of Article 37(1)(a) of Regulation 2016/679, justify the Administrator's belief that "(...) [i]n light of the above, I believe that the necessary formalities have been completed at the Office for Personal Data Protection."

In conclusion, it should be noted that the factual findings made during this proceeding cannot constitute proper fulfillment by the Administrator of the obligation imposed on him under Article 37(1)(a) of Regulation 2016/679, which simultaneously provides grounds for rejecting the thesis put forward by him in the letter dated March 5, 2024, stating that "(...) [t]o date, the Data Protection Officer in Y was Ms. AB.", since – as demonstrated – the effective appointment by the Administrator of the aforementioned person to perform the function of DPO has never taken place. In such established circumstances, it cannot therefore be surprising that the Administrator did not notify the President of the UODO, in accordance with Article 37(7) of Regulation 2016/679, of the appointment of Ms. AB to perform the function of DPO. This omission thus constitutes – in the opinion of the President of the UODO – a specific confirmation of the ineffectiveness of the appointment by the Administrator of a specific person to perform the function of DPO. It should therefore be considered in the context of the Administrator's failure to fulfill the obligation to appoint a DPO in his organization from the beginning of the application of the provisions of Regulation 2016/679 in the Polish legal system.

Similar conclusions are also drawn from further analysis of the explanations submitted by the Administrator. In the response provided to the supervisory authority on February 21, 2024, addressing the issue of appointing a data protection officer in his organization, he raised the argument that "(...) the Data Protection Officer was Ms. AB, who had been on sick leave since (...) . The employment relationship with this employee ended on (...). All employee duties were taken over by Ms. CD, in accordance with the accepted and signed scope of duties." At the same time, in a later letter dated April 4, 2024, the Administrator provided the content defining the basic employee duties and dated June 26, 2023, "Scope (...)" of Ms. CD, who expressed approval for the provisions contained therein with her handwritten signature dated July 3, 2023. Meanwhile, the chronology of events presented by the Administrator leads to the conclusion in which

– Given the clearly defined time gap between the end of the employment relationship with Mr. AB and the date of acceptance of the employee duties by Ms. CD – no transfer of duties from the predecessor regarding the performance of the DPO function could have taken place (assuming that Mr. AB was effectively appointed to perform the DPO function at all, which, as demonstrated, never occurred). The

failure of the Administrator to fulfill the obligation to designate a DPO within their organization is also clearly evidenced by the analysis of the content of the "Scope (...)" of Ms. CD, which in point (...) states about the substitution of "(...) an absent employee in accordance with the oral instruction of X." Therefore, based on this, Ms. CD could not be perceived as a person designated by the Administrator to perform the DPO function, because – as shown above – her designation to perform this function solely based on the oral instruction of the Administrator would not constitute its effectiveness and further the proper fulfillment by him of the obligation specified in Article 37(1)(a) of Regulation 2016/679. Unfortunately, the other provisions of the mentioned document do not provide any grounds that could even indirectly indicate that Ms. CD was appointed by the Administrator to perform the DPO function in their organization.

The outlined state of legal violation persisted also at the time when – as indicated by the Administrator in a letter dated March 5, 2024 – at the moment of Mr. AB's longer absence "(...) caused by health problems, all duties were transferred to Ms. CD. (...)," which occurred "(...) on October 7, 2022. (...)". As established, the Administrator did not present any evidence indicating the effectiveness of Mr. AB's appointment to perform the DPO function in their organization, and even if they had such evidence, considering that Ms. CD accepted her employee duties (notably, as indicated above, devoid of regulations regarding her ability to perform the DPO function within the Administrator's structure) only on July 3, 2023, she could not have performed any substitution for an absent employee. In this context, the fact that "(...) this was not reported by correspondence to the UODO (...)" should not be surprising, but this negligence was not simply a result of what the Administrator would like to perceive as an oversight, but a logical consequence of the lack of designation of a DPO within their structure. The above argumentation is also confirmed by the content of the notification submitted by Z on March 5, 2024, which indicated that the person being dismissed from the aforementioned function is not Ms. CD, to whom Mr. AB was supposed to transfer all his duties when going on a longer medical leave, but rather the second of the mentioned individuals, thus the employee whose employment relationship "(...) ceased on (...)."

In these circumstances, it should be pointed out that the state of violation of Article 37(1)(a) of Regulation 2016/679 lasted until March 4, 2024, when Z appointed Ms. EF to perform the DPO function by "Order (...)." On the other hand, the violation by the Administrator of Article 37(7) of Regulation 2016/679 ceased on March 5, 2024, when they notified the President of the UODO of this fact. Nevertheless, the violation of the mentioned provision regarding the obligation to publish the contact details of the DPO is unfortunately still continued by the Administrator, which is undoubtedly evidenced by the analysis of the content available on their website (see: (...)).

In conclusion, the factual findings presented above lead to a justified conclusion that the Administrator failed to effectively designate a DPO within their organization and to notify the supervisory authority over a broad time horizon, from May 25, 2018, to – respectively – March 4 and 5, 2024. The appropriate publication of the DPO's contact details has not been made by the Administrator to this day.

Having this in mind, the President of the UODO could not act otherwise than to issue to the Administrator – in accordance with the provisions of Article 58(2)(d) of Regulation 2016/679 – an order to adapt processing operations to the provisions of Regulation 2016/679 by having Z publish the DPO's contact details.

In light of the argumentation presented above, it is also necessary to emphasize that in this case, no exceptional circumstances occurred that would in any way justify the serious shortcomings of the Administrator in terms of compliance with the provisions of Article 37(1)(a) and Article 37(7) of Regulation 2016/679. Such a premise cannot be considered the situation in which "(...) Y faced personnel upheavals and problems arising from the change of headquarters and a prolonged move," or the circumstances related to the Administrator's belief that "(...) all formalities related to the appointment of (...) [Mr. AB – ed. note] as DPO were fulfilled." Accepting this argumentation would undoubtedly diminish the role that properly appointed data protection officers have to play in the personal data protection system. Therefore, considering the need for this system to maintain an

appropriate level of effectiveness, it is all the more necessary to refer to the still relevant judgment of the Supreme Administrative Court of March 4, 2002 (case file II SA 3144/01), which states that "no organizational or financial reasons should be treated as grounds for unlawful processing of personal data."

Evaluating the circumstances of the infringement of the provisions of Regulation 2016/679, it should be emphasized that when applying the provisions of Regulation 2016/679, it is necessary to keep in mind that the purpose of this regulation (as expressed in Article 1(2)) is to protect the fundamental rights and freedoms of natural persons, in particular their right to the protection of personal data, and that the protection of natural persons in relation to the processing of personal data is one of the fundamental rights (first sentence of Recital 1 of the preamble). The guarantor of the aforementioned rights belonging to natural persons remains, within the framework of the tasks performed (as defined in Article 39 of Regulation 2016/679), the data protection officer, who enjoys a special status in the personal data protection system (based on Article 38 of Regulation 2016/679).

In light of the above findings, the President of the Personal Data Protection Office, exercising the authority granted to him under Article 58(2)(i) of Regulation 2016/679, according to which each supervisory authority has the power to impose, in addition to or instead of other corrective measures provided for in Article 58(2)(a)-(h) and (j) of this regulation, an administrative fine pursuant to Article 83(4)(a) and (5)(a) of Regulation 2016/679, taking into account the circumstances established in the proceedings, determined that in the case at hand there were grounds justifying the imposition of an administrative fine on X at ul. (...)

According to Article 83(4)(a) of Regulation 2016/679, infringements of the provisions concerning the obligations of the controller and the processor, referred to in Articles 8, 11, 25-39, and 42 and 43, are subject, according to paragraph 2, to an administrative fine of up to EUR 10,000,000, and in the case of an enterprise, up to 2% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

Furthermore, pursuant to Article 102(1)(1) of the Personal Data Protection Act, the President of the Personal Data Protection Office may impose, by way of a decision, administrative fines of up to 100,000 PLN on entities in the public finance sector, as referred to in Article 9(1-12 and 14) of the Public Finance Act. Z is an entity to which this limit on fines applies.

The administrative fines referred to in paragraphs 1 and 2 of the aforementioned legal provision are imposed by the President of the Personal Data Protection Office based on and under the conditions specified in Article 83 of Regulation 2016/679 (Article 102(3) of the Personal Data Protection Act).

In turn, Article 83(3) of Regulation 2016/679 states that if the controller or processor infringes several provisions of this regulation intentionally or unintentionally within the same or related processing operations, the total amount of the administrative fine shall not exceed the amount of the fine for the most serious infringement.

In deciding to impose an administrative fine on Z, the President of the Personal Data Protection Office - in accordance with the provisions of Article 83(2)(a)-(k) of Regulation 2016/679 - took into account the following circumstances of the case, which are aggravating and influence the amount of the imposed administrative fine:

1. The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing in question, the number of affected individuals whose data are concerned, and the extent of the damage suffered by them (Article 83(2)(a) of Regulation 2016/679). In determining the administrative fine, the fact that the Administrator violated the provisions of Regulation 2016/679, which impose on him, as an entity specified in Article 9 of the Personal Data Protection Act in connection with Article 9 of the Public Finance Act, an absolute obligation to designate a data protection officer within his structure and subsequently publish his contact details, as well as notify the supervisory authority about them, was of significant importance.

In an attempt to appropriately determine the gravity of the infringement outlined by the Administrator of

the provisions of Article 37(1)(a) and Article 37(7) of Regulation 2016/679, it is necessary to refer to the purposive interpretation of the provisions of this legal act. Such an analysis leads, consequently, to the conclusion beyond any doubt that the primary interest, which the personal data protection system is to effectively safeguard, is the right of natural persons to privacy in relation to the processing of their personal data. It is evident that the measure of the effectiveness of this system should primarily be the realization by the controllers of the processes occurring in their areas of personal data processing, which is as compliant as possible with the provisions on personal data protection. According to the risk-based approach, the implementation by controllers of solutions that promote the provision of an adequate level of protection for the processes occurring in their structures requires them to adopt a proactive approach, meaning one in which the solutions they choose are tailored not only to the nature of their organization but also to the nature, scope, context, and purposes of the processes of personal data processing occurring in their structures. Moreover, the controllers bear the obligation to adequately demonstrate to the supervisory authority responsible for personal data protection the fact of conducting a risk identification related to the processing of personal data, assessing it in terms of the source, nature, likelihood, and severity of the threat, and implementing organizational and technical measures to mitigate the risk of a personal data breach. In these tasks, particularly for the controller being a public authority or entity, support should be provided in accordance with the will of the EU legislator, fulfilling a monitoring and advisory function.

Data Protection Inspector. In reference to Guidelines WP 243: "In addition to facilitating compliance with applicable regulations by implementing accountability tools (e.g., streamlining the process of conducting data protection impact assessments and conducting or facilitating audits), the DPO acts as an intermediary between the relevant stakeholders (e.g., supervisory authorities, data subjects, and departments within the organization)." Therefore, the deficiencies demonstrated by the Administrator concerning the failure to fulfill the obligations imposed on him in an absolute manner, as referred to in Article 37(1)(a) and Article 37(7) of Regulation 2016/679, must be assigned significant weight and seriousness. This is not only due to the fact that the Administrator, as a public authority, is even more obliged to respect the legal norms applicable to him. The violations attributed to him in the described form of Regulation 2016/679 should, in the opinion of the President of the UODO, be considered in a broader context, thus also in the context of the Administrator's violation of the obligation to protect the rights or freedoms of the data subjects. Their consequences therefore extend beyond what is implied by their formal legal nature. The circumstance of the Administrator's failure to appoint a DPO may often hinder, and even prevent, the realization of the rights of individuals, which necessitates treating the violation established in this case as undermining the system of personal data protection. The argument presented regarding the systemic impact of the Administrator's violation of the provisions of Regulation 2016/679 within the timeframe outlined on page 10 is further reinforced when compared with point 53 of the judgment C-131/12 of May 13, 2014, in the case of Google Spain, in which the CJEU rightly noted that "(...) ensuring the protection of fundamental rights and freedoms of natural persons, in particular their right to privacy in relation to the processing of personal data, cannot be interpreted restrictively." Relating the above thesis to the circumstances of the case at hand, it should be noted that the DPO should support the Administrator in all activities where, due to the nature of the actions taken, this is necessary. Therefore, the Administrator's processing of personal data from May 28, 2018, to March 4, 2024, excluding the role of the DPO (to whom he was obliged to appoint), excludes the possibility of accepting that he created conditions for effective enforcement of the rights of individuals during that time. In this context, the seriousness of the violations of the aforementioned provisions of Regulation 2016/679 identified during this proceeding and involving the Administrator becomes even more apparent when compared with the content of Article 38(4) of Regulation 2016/679. This provision establishes an extremely important function of the DPO from the perspective of the data subjects, in the form of serving as a contact point for data subjects in all matters related to the processing of their personal data and the exercise of their rights under Regulation 2016/679. Meanwhile, the Administrator, refraining until March 4, 2024, from effectively appointing a DPO within his organization, violated in his area of cognition this right belonging to a wide circle of individuals. This group includes not only employees of Y but all individuals with respect to whom the Administrator has ever acted in an authoritative position as a public administration authority exercising the competencies

assigned to him by law. It should therefore be noted that in such a defined context of processing, these individuals could have been accompanied by a state of concern related to the inability to effectively enforce their rights regarding control over their own personal data, especially since the Administrator, due to his own deficiencies in relation to Article 37(1)(a) and Article 37(7) of Regulation 2016/679, was unable to provide these individuals with a complete and reliable set of information regarding the processing of their personal data as required under Article 13(2)(b) of Regulation 2016/679. The argument presented is not diminished by the fact that he included in the content of the order No. (...) of May 25, 2018, "(...)" information of the following nature: "Data Protection Inspector AB," as this brief mention cannot, in any way, constitute a basis for the effective appointment of a person to perform the role of DPO. Under these circumstances, it is logical to conclude that the individuals whose signatures confirming their acknowledgment of the content of the said document are recorded in the evidence material faced at least serious limitations in the exercise of their right to information about the processing of their personal data, while – according to the Administrator's opinion – Ms. AB was to perform the function of DPO. For the same reasons, regarding other categories of data subjects, especially clients Z, it is difficult to see how the realization of their substantive rights was possible during the indicated period, since the Administrator did not present any evidence confirming the fact of providing Ms. AB's contact details to the public, and even if such information had been made available, this circumstance – due to the ineffectiveness of appointing the aforementioned person to perform the function of DPO within the Administrator's organization – would not have a positive impact on the privacy of those data subjects. At the same time, it should be noted that the evidence collected in the course of this proceeding does not show that a similar mention...

Regarding the individual Mr. CD, there has never been a place found in the documentation presented by the Administrator. This allows, in the opinion of the President of the UODO, for the acceptance of a justified conclusion that even this narrow group of employees in his organization, which is small compared to the scale of processing operations carried out by the Administrator, has been deprived by him, over a broad time horizon, i.e., when Mr. CD was supposedly to perform the function of DPO in Y, of access to reliable information about the processing of data concerning them, which is indeed a significant component of the broadly understood right to privacy. Undoubtedly, the fault attributed to the Administrator regarding the obligation to designate a DPO may, in the described circumstances of this case, create a risk of material or immaterial harm to the rights of individuals whose data has been subjected to processing by him.

The above observation thus necessitates a reconsideration of the violation of the obligation specified in Article 37(1)(a) of Regulation 2016/679 in a broader context, i.e., through the lens of the real enforcement of the rights granted to data subjects. In order to correctly determine the significance of the violations identified during this proceeding regarding the provisions of the aforementioned regulation, it is impossible to overlook the extremely important issue from the perspective of individuals concerning their agency in relation to the data subjected to processing operations by the Administrator. It should be pointed out that, in the opinion of the President of the UODO, the effectiveness of these individuals in exercising their rights may have encountered, from May 28, 2018, to March 4, 2024, at least serious limitations. In this context, it is impossible not to take into account the manner in which the President of the UODO received information regarding the irregularities occurring in the Administrator's organization. This information came from a person interested in complying with "(...) the Personal Data Protection Act in Y at ul. (...) (...)". The fact that this person indicated that Y "(...) does not have a Data Protection Officer (...))" allows for the conclusion of at least this person's uncertainty regarding the conditions created by the Administrator for the protection of the rights or freedoms of the individuals whose data is concerned. It should be the duty of every administrator to facilitate individuals whose data is concerned in exercising their rights, which, in the context of this case, became the responsibility of the supporting Z - DPO only on March 4, 2024.

At the same time, the nature of the data processing operations carried out by Z, as an administrative body, constitutes an additional factor increasing the weight of the identified shortcomings. An inherent feature of these processes is the imbalance between the individuals whose data is concerned and the Administrator, a public authority in a position of power (similar inequalities can be observed in the case

of the Administrator processing the personal data of its employees). Referring to the EROD Guidelines 04/2022 concerning the calculation of administrative fines based on GDPR, hereinafter referred to as Guidelines 04/2022, "(...) The supervisory authority may also attach greater importance to this factor in the case of a clear imbalance between the individuals whose data is concerned and the administrator (...)".

Regardless of the above, the fact of the long duration of the violation of the provisions of interest to the President of the UODO in the course of the proceedings he is conducting also demands particular emphasis. It should be noted that the state of violation of Article 37(1)(a) of Regulation 2016/679 began on May 25, 2018, i.e., on the day the provisions of Regulation 2016/679 came into effect, and continued until March 4, 2024, when the Administrator effectively designated Mr. EF to perform the function of DPO. On the other hand, the failure of Z to fulfill the obligation specified in Article 37(7) of Regulation 2016/679 to inform the supervisory authority about the contact details of the DPO ceased on March 5, 2024, at the moment Z made the appropriate notification. Nevertheless, the violation of the aforementioned provision regarding the obligation to publish the contact details of the DPO is continued by the Administrator – in the absence of evidence to the contrary. Thus, it must be noted that the right of each individual whose data remained subject to processing operations carried out by the Administrator to broadly understood privacy, assessed from the perspective of exercising control over their personal data and using the rights granted under Article 38(4) of Regulation 2016/679, was subjected by the Administrator to limitations during the specified time frame, and this state has not yet been fully rectified.

Such a state of affairs, standing in opposition to the comprehensive and effective enforcement of the right to privacy, affects – what is worse – potentially broad categories of individuals. Moreover, the violations of the provisions of Regulation 2016/679 attributed to the Administrator must be assigned a systemic character not only due to the fact that they may, according to Guidelines 04/2022, "(...) affect, even at different times, additional individuals whose data is concerned, who have not filed complaints or notifications to the supervisory authority." The systemic nature of the shortcomings on the part of Z is also encouraged by the context of the data processing operations carried out by it as a public administration body operating within its jurisdiction.

physical persons, being both its employees and clients.

2. The intentional nature of the violation (Article 83(2)(b) of Regulation 2016/679). The Administrator, as a public authority, should not only guarantee knowledge of the law but also respect the applicable legal norms, including those concerning the protection of personal data, in an absolute manner. Meanwhile, a detailed analysis of the evidence collected during these proceedings provides ample examples confirming the Administrator's full awareness of the obligations imposed on it under Article 37(1)(a) and Article 37(7) of Regulation 2016/679, which it failed to fulfill. This is evidenced by the indisputable fact that the personal files concerning Ms. AB and the content of Order No. (...) of May 25, 2018, "(...)" lack - in light of contrary evidence - legal validity references designating this person as appointed to perform the role of DPO in the Administrator's organization. Similar remarks can certainly be made regarding the argument raised by the Administrator about the actual fulfillment of DPO tasks by the aforementioned person, as well as in relation to the content of the "Scope of (...)" of Ms. CD, which, in its opinion, was to substitute Ms. AB in performing the DPO function. Moreover, the raised argument, which presumes the intentional violation by the Administrator of the obligations imposed on it, is further reinforced by the fact that the person designated by "Order (...)" to perform the DPO function, Ms. EF, according to the notification submitted to the President of UODO on March 5, 2024, replaced not Ms. CD in this position, but Ms. AB, who - as demonstrated - was never effectively appointed by Z to perform the above function. In the opinion of the supervisory authority, the cited circumstances, clearly demonstrating the inconsistency of the explanations provided by the Administrator, give rise to the thesis of Z's conscious evasion of the specific obligations imposed on it by the aforementioned provisions of Regulation 2016/679, since in fact none of the indicated persons could effectively perform the DPO function in its organization before March 4, 2024. Consequently, it should be noted that the Administrator's failure to comply with the norms of Article 37(1)(a) and Article 37(7) of Regulation 2016/679, both before the termination of the employment relationship with Ms. AB

and after the date “(...) (...) (...)”, when this relationship ended and there was no effective appointment of Ms. CD to perform the DPO role, as well as the conscious continuation of this state of affairs (which the Administrator implicitly confirmed on March 5, 2024, in the notification of Ms. AB's removal from the DPO function until the effective appointment of Ms. EF to perform the DPO function on March 4, 2024, and the notification the following day of this fact to the President of UODO, speaks - in the opinion of the President of UODO - for the intentional nature of the violation of the aforementioned provisions of Regulation 2016/679. At the same time, it should be emphasized that the Administrator, despite being aware of the obligation imposed on it under Article 37(7) of Regulation 2016/679, still did not publish the contact details of the DPO.

3. The degree of cooperation with the supervisory authority to remedy the violation and mitigate its potential negative effects (Article 83(2)(f) of Regulation 2016/679). In this case, the President of UODO found the cooperation from Z to be unsatisfactory. This assessment primarily concerns the delayed response of the Administrator to the request made to it on March 11, 2024, to present evidence of the appointment of a DPO within its structure from May 25, 2018. Despite the precisely formulated request from the President of UODO, the content of Order No. (...) regarding the appointment of Ms. EF to perform the DPO function was presented by the Administrator only on September 5, 2024, which was also associated with the necessity for the supervisory authority to once again request on August 28, 2024, the disclosure of evidence by Z in this regard. However, the Administrator did not indicate - contrary to the request of the President of UODO - the reasons for not providing them within the deadline originally set by the supervisory authority. The Administrator's provision of information with significant delay - which is crucial for the ongoing proceedings and which it had been in possession of since March 4, 2024 - negatively affected the supervisory authority's ability to comprehensively consider all circumstances of the case. The lack of willingness for full cooperation in this regard from Z was also evident in the explanations provided by it. It is impossible not to notice that the Administrator consistently maintained its thesis about the effective appointment of Ms. AB and Ms. CD to perform the DPO function (which, as demonstrated, was not confirmed by the collected evidence), only to ultimately provide evidence of the inconsistency of the raised arguments. In the notification sent on March 5, 2024, regarding the removal of Ms. AB from the DPO function, it implicitly confirmed that Ms. CD could never have performed this function in its organization. Considering the fact that - as established - Ms. AB also never effectively performed this function in the Administrator's organization, it allows for the conclusion that the Administrator's participation in these proceedings not only did not facilitate the supervisory authority in making key findings for this case.

Another aggravating circumstance for the Administrator is the fact that on its website (see: (...)) there is still no information regarding who in Y was entrusted with the DPO function by the Administrator. This simultaneously indicates the failure to remedy the violation of Article 37.

7 of Regulation 2016/679 regarding the publication of contact details of the Data Protection Officer (DPO), despite the initiation of administrative proceedings in this matter by the President of the Personal Data Protection Office (UODO) ex officio.

In determining the amount of the administrative monetary penalty for the Administrator, the President of UODO found no grounds to consider mitigating circumstances that would affect the final amount of the penalty. All the criteria listed in Article 83(2)(a) - (j) of Regulation 2016/679, in the opinion of the supervisory authority, constitute either aggravating factors or are merely neutral. Furthermore, applying the criterion mentioned in Article 83(2)(k) of Regulation 2016/679 (which requires consideration of any other aggravating or mitigating factors applicable to the circumstances of the case), no mitigating circumstances were found, only neutral ones (as noted below in points 8 and 9).

Other circumstances indicated below, referred to in Article 83(2) of Regulation 2016/679, after assessing their impact on the identified violation in this case, were deemed neutral by the President of UODO, meaning they had neither an aggravating nor a mitigating effect on the amount of the imposed administrative monetary penalty.

1. Actions taken to minimize the damage suffered by the data subjects (Article 83(2)(c) of Regulation 2016/679). In this case, the President of UODO assessed the Administrator's compliance with the

obligations imposed on him under Articles 37(1)(a) and 37(7) of Regulation 2016/679. The violations of the aforementioned legal provisions are of a formal nature and, as such, are detached from the issues of material or non-material damages that may have been suffered by the data subjects. The fact that there were no circumstances in which the Administrator would have had to take action to minimize the damages suffered by these individuals means that this criterion cannot be treated as an element in the assessment of the violations of the provisions of Regulation 2016/679 identified during this proceeding.

2. The degree of responsibility of the administrator, taking into account the technical and organizational measures implemented by him under Articles 25 and 32 (Article 83(2)(d) of Regulation 2016/679). During this proceeding, the supervisory authority considered issues related to the assessment of the Administrator's actions only in the context of his proper fulfillment of the obligations referred to in Articles 37(1)(a) and 37(7) of Regulation 2016/679. Therefore, the President of UODO did not examine circumstances related to the Administrator's compliance with other obligations imposed on him by Regulation 2016/679, including those specified under Articles 25 and 32 of this legal act. For this reason, any potential lack of appropriate technical and organizational measures, as referred to in Articles 25 and 32 of Regulation 2016/679, being unrelated to the essence of the matter, and thus devoid of aggravating or mitigating attributes, cannot be considered a factor that could additionally influence the assessment of the violations of the provisions of Regulation 2016/679 identified during this proceeding and the amount of the monetary penalty imposed on the Administrator.

3. Any relevant previous violations by the administrator (Article 83(2)(e) of Regulation 2016/679). The President of UODO did not find any previous violations of data protection regulations on the part of the Administrator, which means there are no grounds to treat this circumstance as aggravating. It is the duty of every administrator to comply with the law, and therefore the absence of previous violations cannot also be a mitigating circumstance when imposing sanctions.

4. Categories of personal data affected by the violation (Article 83(2)(g) of Regulation 2016/679). The violation by the Administrator of the provisions of Articles 37(1)(a) and 37(7) of Regulation 2016/679 concerned the failure to fulfill his absolute obligation to effectively designate a DPO within his organization and to publish his contact details accordingly, as well as to notify the supervisory authority about them. Thus, it does not inherently relate to the issue of the security breach of personal data processed by the Administrator and their categories in the sense of Article 4(12) of Regulation 2016/679, which could consequently have an aggravating or mitigating dimension in the assessment of the identified violation.

5. The manner in which the supervisory authority became aware of the violation, in particular, whether and to what extent the administrator reported the violation (Article 83(2)(h) of Regulation 2016/679). The President of UODO became aware of the irregularities in the processing of personal data carried out by the Administrator during the explanatory proceedings initiated as a result of a report concerning "(...) the manner of compliance with the Personal Data Protection Act in Y at ul. (...) (...)". At the same time, the EDPB indicates in Guidelines 04/2022 that "the manner in which the supervisory authority became aware of the violation may constitute a significant aggravating or mitigating circumstance. In assessing this aspect, particular importance can be attributed to the question of whether the administrator or processor notified the supervisory authority of the violation on their own initiative, and if so, to what extent, before the supervisory authority was informed of the violation through - for example - a complaint or proceedings. (...) In cases where the supervisory authority became aware of the violation, for instance, as a result of a complaint or during proceedings, this element should generally also be considered a neutral circumstance." The supervisory authority... may consider this fact as a mitigating circumstance if the administrator or the processor reported the breach on their own initiative before the supervisory authority became aware of the matter."

6. If measures have previously been applied to the administrator in the same case, as referred to in Article 58(2) - compliance with these measures (Article 83(2)(i) of Regulation 2016/679). Before issuing this decision, the President of the UODO did not apply any measures listed in Article 58(2) of Regulation 2016/679 to the Administrator in the case under consideration, which means that they were not obliged to take any actions related to their application, and such actions, subject to the assessment

of the supervisory authority, could have had an aggravating or mitigating effect on the assessment of the established breach.

7. The application of approved codes of conduct under Article 40 or approved certification mechanisms under Article 42 (Article 83(2)(j) of Regulation 2016/679). The Administrator does not apply approved codes of conduct or approved certification mechanisms referred to in the provisions of Regulation 2016/679. However, their adoption, implementation, and application are not mandatory for administrators, as stated in the provisions of Regulation 2016/679, which means that the circumstance of their non-application cannot be considered against the Administrator in this case. On the other hand, the circumstance of adopting and applying such instruments could be taken into account in favor of the Administrator as measures guaranteeing a higher than standard level of protection of personal data processing.

8. Financial benefits obtained directly or indirectly in connection with the breach or avoidance of loss (Article 83(2)(k) of Regulation 2016/679). The President of the UODO did not find that the Administrator derived any financial benefits or avoided such losses in connection with the breach. Therefore, there are no grounds to treat this circumstance as aggravating for the Administrator. The establishment of measurable financial benefits resulting from the breach of the provisions of Regulation 2016/679 should be assessed very negatively. The absence of such benefits for the Administrator, as a natural state independent of the breach and its consequences, is a circumstance that inherently cannot be mitigating for the Administrator. This interpretation is confirmed by the very wording of Article 83(2)(k) of Regulation 2016/679, which requires the supervisory authority to pay due attention to the benefits "obtained" - that occurred on the part of the entity committing the breach.

9. Other aggravating or mitigating factors applicable to the circumstances of the case (Article 83(2)(k) of Regulation 2016/679). The President of the UODO, comprehensively considering the case, did not note any circumstances other than those described above that could influence the assessment of the breach and the amount of the imposed administrative fine. In this case, the administrative fine imposed on Z was for violating Article 37(1)(a) and Article 37(7) of Regulation 2016/679 based on the aforementioned Article 83(4)(a) of Regulation 2016/679. At the same time, the fine of 25,000 PLN imposed on the Administrator for the violation of all the above provisions - in accordance with Article 83(4)(a) of Regulation 2016/679 - is subject to an administrative fine of up to 10,000,000 EUR, and in the case of an enterprise - up to 2% of its total annual worldwide turnover from the previous financial year, without exceeding the limit of fines specified in Article 102(1)(1) of the UODO.

Considering all the circumstances discussed above, the President of the Personal Data Protection Office concluded that the imposition of an administrative fine on Z is necessary and justified by the seriousness, nature, and scope of the alleged violations of the provisions of Regulation 2016/679. It must be stated that the application of any other corrective measure provided for in Article 58(2) of Regulation 2016/679, particularly merely issuing a reprimand (Article 58(2)(b) of Regulation 2016/679), would not be proportional to the identified irregularities in the personal data processing and would not guarantee that the aforementioned entity would not commit similar negligence in the future as in this case.

In the opinion of the President of the UODO, the administrative fine imposed on Z in the amount of 25,000 PLN (in words: twenty-five thousand zlotys) fulfills, in the established circumstances of this case, the functions referred to in Article 83(1) of Regulation 2016/679, i.e., it is effective, proportional, and deterrent in this individual case.

In the opinion of the President of the UODO, the fine imposed on Z is proportional both to the seriousness of the violation (resulting in a breach of the absolute obligation resting on the Administrator, referred to in Article 37(1)(a) of Regulation 2016/679, also resulting in the failure to meet the requirements specified in Article 37(7) of Regulation 2016/679) and to the size of that administrator. At the same time, the President of the UODO points out that the administrative fine imposed on Z particularly meets the criterion of proportionality of the penalty in the sense developed in the case law of the CJEU (in the context of competition law and in relation to decisions of the

European Commission, but in the opinion of the President of the UODO having a more general application): "[...] the principle of proportionality requires that acts issued by the institutions of the Union did not exceed the limits of what is appropriate and necessary to achieve the legitimate objectives served by the given provisions, and where there is a possibility of choosing from a greater number of appropriate solutions, the least burdensome option should be applied, and the resulting inconveniences must not be excessive in relation to the intended objectives [...]" (see judgment of December 12, 2012, *Electrabel / Commission*, T-332/09, EU:T:2012:672, para. 279 and the case law cited therein) (see judgment of October 26, 2017, in case T-704/14 *Marine Harvest ASA v. Commission*, para. 580).

In the opinion of the President of the Personal Data Protection Office, the penalty at this level will be effective (it will achieve the objective of punishing the Administrator for a serious violation with serious consequences) and deterrent for the future (it will cause Z, in order to avoid further sanctions, to pay due attention to properly fulfilling the obligations incumbent upon it as an entity specified in Article 9 of the Personal Data Protection Act in connection with Article 9 of the Act on Public Finance). A lower penalty for this entity could, in practice, go unnoticed and could leave room for calculating whether the costs of administrative monetary penalties for this organization would not be lower than the expenditures on personal data protection.

In this regard, it should be noted that the monetary penalty of 25,000 PLN (in words: twenty-five thousand zlotys) imposed on the Administrator meets, in the established circumstances of this case, the criteria referred to in Article 83(1) of Regulation 2016/679 due to the seriousness of the established violation in the context of the fundamental objective of Regulation 2016/679 – the protection of the fundamental rights and freedoms of natural persons, in particular the right to the protection of personal data. At the same time, the amount of the administrative monetary penalty imposed by this decision on Z, being an entity of the public finance sector (indicated in Article 9 of the Act on Public Finance), falls within the limit of 100,000 zlotys specified in Article 102(1) of the Personal Data Protection Act.

Having the above in mind, the President of the Personal Data Protection Office decided as stated in the operative part of this decision.

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